

1.

CASE #	CASE NAME	HEARING NAME
CVME2503209	CITRUS POINTE-TERRACE GROVE HOMEOWNERS ASSOCIATION VS VEGA	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling: Unopposed Motion for leave to Amend is granted. Plaintiff to file First Amended Complaint within 10 days of this order.

2.

CASE #	CASE NAME	HEARING NAME
CVME2403760	I.E. GARDENS 2, INC VS PANDYA	MOTION TO DEEM MATTERS ADMITTED THE TRUTH OF MATTERS SPECIFIED IN REQUESTS FOR ADMISSION, SET ONE, PROPOUNDED TO DEFENDANT KISHANRAJ ANIL "SEAN" PANDYA , SEAN PANDYA ENTERPRISES LLC, AND ANIL PANDYA

Tentative Ruling: Motion to Deem Matters Admitted denied as to Kishanraj Anil "Sean" Pandya. Granted as to Sean Pandya Enterprises, LLC and Anil Pandya. Sanctions awarded against defendants and Defense Counsel of Sean Pandya Enterprises, LLC and Anil Pandya in the amount of \$800 each. "If a party to whom requests for admission are directed fails to serve a timely response, . . . (b) [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction . . ." (CCP § 2033.280.) A responding party's responses to requests for admission are required to be verified, unless only objections are asserted. (CCP § 2033.240.)

Based on the evidence provided in the moving papers, Kishanraj Anil "Sean" Pandya provided verified responses to the requests for admission at issue. These responses were provided on 2/24/26. (Exhibit B- D to Joshua D. Naggar's Declaration.) Plaintiff states that these responses were due by 2/26/26. (Declaration of Joshua D. Naggar, ¶ 9.) As such, timely verified responses were provided from Sean.

Plaintiff contends that these responses should be treated as no responses at all because the verification is not dated, the caption identifies the wrong county, and Sean is mislabeled as the "Plaintiff." CCP § 2033.240(a), which pertains to verified responses to requests for admission, states that "[t]he party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections." It does not require that the verification be dated. Plaintiff points to no authority that a verification is defective if it is not dated. The authority relied on by Plaintiff simply states that "[u]nsworn responses are tantamount to no responses at all." (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

The verification is signed under penalty of perjury under the laws of the State of California and states that the contents of the responses to the requests for admission are true. It purports to be signed by Sean. As such, the responses are verified. It is correct that the verification misidentifies the parties. It indicates that the requests for

admission were propounded by the defendant and Sean is the plaintiff. However, the Court could find no authority and Plaintiff cites to none, that such a scrivener's error makes the verification invalid. It also fails to point to any authority that the reference to the wrong county makes a discovery response invalid. Plaintiff's counsel also appears to argue that the preparation of the discovery responses by The Maddison Firm was improper because substitution of counsel for said firm was not filed with the court until two months after the discovery responses were provided. The Court could find no authority and Plaintiff fails to cite to any that this makes the discovery responses invalid. Due to this, the motion is denied as to Sean.

No oppositions have been provided by Anil or Enterprise. Under CCP § 2033.280 sanctions are mandatory against those parties or attorney or both, that fail to serve timely responses to requests for admission.